

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIAN
PANLUNGSOD, CITY OF DAVAO, HELD ON THURSDAY, DECEMBER 17, 1982.

PRESENT:

Vice Mayor Cornelio P. Maskariño, Presiding Officer,
Councilors Valentino C. Banzon, Bienvenido O. Amora,
Dominador B. Zuño, Jr., Pantaleon V. Pelayo, Jr.,
Julieta C. Feliciano, Tomas Monteverde, Jr., Jose A.
Jison, Alfredo H. Vergara, Benigno S. Bangoy, Exuperio
M. Porras, Antonio S. Castillo, Diosdado A. Mahipus,
and Robert Allan Limso.

ABSENT:

Councilors Alexis C. Almendras, Domingo R. Vidanes
and Cipriano Villafuerte, Jr.

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RESOLUTION NO. 942

Letter of Dr. Leon M. Garcia, President of the Theatre Operators Association of Davao City (TOADAC) dated September 16, 1982, inviting the Body's attention to the proliferation of betamax film showing in public places mentioned therein to the detriment of the moviehouse industry, and recommending therein some remedial measures to protect the interest of said moviehouse industry as well as the government in the form of payment of due amusement taxes, for which the Committee on Laws and Ordinances recommended that this matter be treated by the Body as a whole, was presented for consideration and appropriate action of the Body by Councilor Antonio S. Castillo.

Councilor Castillo manifested that the public showing of betamax films, tapes in some public establishments, such as restaurants, cocktail lounges, pub houses, schools, etc., have substantially ruined the moviehouse industry in the City of Davao. Councilor Castillo stated further that movie films which are scheduled for showing in Davao movie theaters are shown in advance through betamax film showing in the aforementioned business establishments thus decrease enormously the number of movie-goers patronizing the moviehouses. What is worst, Councilor Castillo went further, is that some of this betamax films did not pass the stamped approval of the Board of Censors. Upon the other hand, Councilor Castillo stressed that these business establishments showing betamax films do not pay the amusement taxes due, unlike the moviehouse theatres which pay the regular amusement taxes due.

Councilor Castillo proposed for the passage of an Ordinance regulating the showing of movie films, tapes and betamax films in public places such as those enumerated above.

After careful deliberation, on motion of Councilor Antonio S. Castillo, duly seconded by Councilor Pantaleon V. Pelayo, Jr., co-sponsored by Councilor Jose A. Jison, it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an Ordinance, entitled:

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Resolution No. 942, Ordinance No. 381,
series of 1982, cont'd.:

ORDINANCE NO. 381

AN ORDINANCE REGULATING THE PUBLIC SHOWING OF MOVIE FILM, TAPES
OR BETAMAX FILMS IN PUBLIC ESTABLISHMENTS IN THE CITY OF DAVAO.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SEC. 1.- The public exhibition of motion pictures, tapes or
betamax films in public places such as restaurants, cocktail
lounges, pub-houses and the like which have not been previously
approved and stamped by the Board of Censors for Motion Pictures
is hereby prohibited;

SEC. 2.- Penal provisions. Any person or persons found
violating the foregoing provisions shall suffer the following
penalties:

- a) First offense - a fine of ₱100.00;
- b) Second offense - a fine of ₱200.00 and/or imprison-
ment for a period not exceeding
one month;
- c) Third offense - a fine of ₱200.00 and imprisonment
for one (1) month including the can-
cellation of business permits.

In case of Corporation, Partnership and Association, the General
Manager and/or President shall be held liable.

SEC. 3.- Any existing ordinance on the same subject matter is
hereby deemed amended, cancelled and/or repealed accordingly;

SEC. 4.- This Ordinance shall take effect upon approval.

ENACTED: DECEMBER 16, 1982.

CARRIED, By a majority of eleven (11) affirmative votes. (Note:
Councilors Banzon, Zúñiga, Jr. and Porras were out when the votes were
taken.)

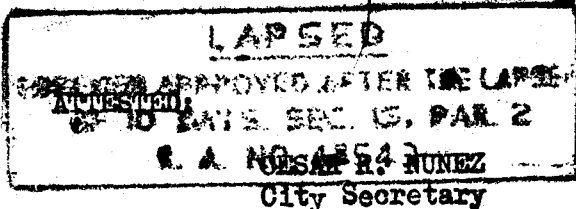
APPROVED:

Cornelio P. Maskarlino
CORNELIO P. MASKARLINO
Vice Mayor
Presiding Officer

ATTESTED:

Agosto P. Fuentes
AGOSTO P. FUENTES
Secretary, Sangguniang Panlungsod
aba/esa

APPROVED: _____, 1982



ELIAS B. LOPEZ
Mayor, City of Davao